



U.S. Department
of Transportation

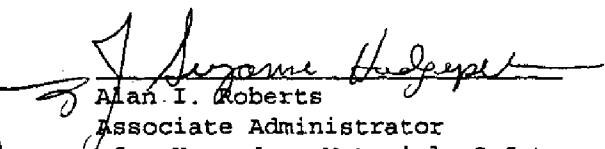
**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10085 (EXTENSION)
ORIGINAL December 19, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10085 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL - 7 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

E.I. du Pont de Nemours & Company, Inc.
Wilmington, DE

May 23, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 19 1988

DOT-E 10085

1. E.I. Du Pont de Nemours and Company, Wilmington, Delaware, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages containing an irritating agent which is also toxic by inhalation for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of Monochloroacetone, inhibited, in a DOT Specification MC 312 cargo tank with no bottom outlets, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Du Pont's application dated March 8, 1988, and supplementary information dated August 10, 1988, November 4, 10, and 18, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Monochloroacetone, inhibited; classed as irritating material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Monochloroacetone, inhibited.
5. REGULATION AFFECTED. 49 CFR 173.3a, 173.384 and 177.841(b).
6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification MC 312 cargo tank manufactured from SA 516 Grade 70 carbon steel with a polypropylene liner. Each cargo tank must be ASME Code "U" stamped and in accordance with drawings D-11580 Rev 1 dated June 29, 1988 and D-11581 Rev. 1 dated June 28, 1988 and other drawings on file with the Office of Hazardous Materials Transportation (OHMT). Additionally, each cargo tank must have: a design pressure of 150 psig a minimum shell thickness of 0.375 inch and minimum head thickness of 0.500 inch; four inches of fiberglass insulation compressed to three inches covered with a 20 gauge stainless steel jacket; a nominal I.D. of 55 inches; a nominal water capacity of 5,000 US gallons; a pressure relief system consisting of a 2-inch spring loaded relief valve outboard of and in series with a 2-inch rupture disc both set at 150 psig, and roll over protection for all fittings. Bottom outlets are prohibited. Each loaded cargo tank must be leak tested with nitrogen at 10 psig (minimum) and transported under nitrogen at 2 psig (minimum).
8. SPECIAL PROVISIONS.
 - a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
 - b. Shipments are authorized from the Du Pont facility, Deepwater, New Jersey to the Merck and Company facility, Rahway, New Jersey only.
 - c. Each cargo tank must be reinspected and retested at least once every two years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC 312 cargo tanks.

- d. This exemption serves as a special packaging approval under the provisions of 49 CFR 173.3a(a) (3) for the shipment of Monochloroacetone, inhibited.
- e. Each cargo tank must be marked on both sides near the middle, in letters at least two inches high on a contrasting background "DOT-E 10085". Additionally, each cargo tank must be marked "INHALATION HAZARD" in letters at least 3 1/2 inches high on a contrasting background in close proximity to the required placards.
- f. Each motor carrier used to transport packagings authorized by this exemption must have a safety rating, as assigned by the Office of Motor Carrier Safety Field Operations (OMCSFO), Federal Highway Administration, of "Satisfactory". Written verification of the safety rating for each motor carrier must be obtained at least once each year. A copy of the safety rating notification letter for each motor carrier, as received from OMCSFO must be submitted with the annual report required by this exemption.
- g. In addition to the requirements of 49 CFR 171.15 and 171.16, the Exemptions Branch, OHMT must be notified of any incident involving damage to the packaging or loss of material shipped under this exemption.
- h. The Exemptions Branch, OHMT shall be advised of the causes of the incident and any remedial action taken, as a result of the incident as soon as practical after its occurrence.
- i. The Exemptions Branch, OHMT must be advised annually, within 30 days after the end of the calendar year, of the shipping experience of the material covered by this exemption. Failure to comply may result in the immediate suspension of this exemption.
9. REPORTING REQUIREMENTS. Any accident involving damage to the cargo tank or incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.
10. EXPIRATION DATE. November 30, 1990.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

DEC 19 1988

(DATE)

Continuation of DOT-E 10085

DEC 19 1988

Page 3

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C. 20590. Attention:
Exemptions Branch.

Dist: FHWA